

Review Hearing regarding Inventory and Appraisal: September 11, 2026, at 9:00 a.m.
Annual Review: June 11, 2027, at 9:00 a.m.
Accounting: June 11, 2027, at 9:00 a.m.

9. PR0001023 In the Matter of Joceyline Rose Guerrero

Appearances are required. The Court is favorably inclined to grant the petition for expedited approval of compromise of minor's claim.

10. PR0001025 In the Matter of Mark Sealander

No appearances are required. The request of Petitioner Mark Sealander for a preliminary injunction to enjoin the sale of real property is denied.

Petitioner seeks a preliminary injunction to prevent Respondent Martha Sealander from selling the residence located at 136 Orchard Street, Nevada City. This asset is a trust asset held by the Sealander Family Living Trust.

“The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or that he should not be restrained from exercising the right claimed by him.” *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528. A preliminary injunction must not issue, “unless it is reasonably probable that the moving party will prevail on the merits.” *San Francisco Newspaper Printing Co., Inc. v. Supt. Ct.* (1985) 170 Cal. App. 3d 438, 442.

At bar, “Petitioner, according to his knowledge and belief, asserts that [Respondent/Co-Trustee] Melinda [Sealander] is unduly influencing [Respondent/Settlor/Co-Trustee] Martha [Sealander], who lacks capacity to make estate planning documents, to sell the Orchard Property, which will benefit Melinda and eliminate Petitioner's beneficial share of the Trust.” 4/6/26 Pet. Br. 5:12-14. The Court is not persuaded.

The Court has reviewed the record as a whole including evidence submitted by Petitioner and Respondents. On the record presented, there is no reasonable probability Petitioner will prevail on the merits of his claims, including his claim that Martha Sealander lacked or lacks capacity to make estate planning documents or his claim that Melinda Sealander has unduly influenced Martha Sealander. In addition, Martha Sealander is alive, the trust remains revocable and Petitioner's interest has yet to vest. Petitioner, thus, has the right to dispose of trust assets as she wishes including the right to sell the property at issue. *See Babbitt v. Superior Court* (2016) 246 Cal. App. 4th 1135, 1145 (Ordinarily, “[b]ecause assets held in a revocable trust essentially belong to the settlor, the settlor may dispose of the trust's assets and effectively eliminate the beneficiaries' interest altogether ‘with no need to justify or explain’ his or her actions.”) The preliminary injunction is denied and the temporary restraining order is dissolved.

Turning to the remaining issues in the Petitioner's April 6, 2026, Petition, the Court is favorably inclined to order the parties to attend mediation, with costs of the same to be